

Council Meeting

October 25, 2023

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, October 25, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Mattea and seconded by Councilor Batchelder to accept the minutes of the October 11, 2023, City Council meeting.

Councilor Koloski pointed out January 8th is listed at the top of the page.

Assistant Mayor Matteau adds to accept with the change of January 8th at the top of the page.

A motion was

Roll call / Voice vote:

O’Hearne – Abstain

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian - Absent

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Girard - Yes

Motion carried 7-0, 1 Abstain

MAYOR'S NOTES

Saturday, October 28, 2023 The Supervisors Checklist will be in session from 11:00am-11:30am.

Saturday, October 28th Spooky Ride at Moody Park from 4:00pm-6:00pm.

Tuesday, October 31st Hallowesta on Pleasant Street from 3:30pm-4:45pm.

Saturday, November 4th Meet the Candidates from 9:00am-11:00am.

Monday, November 6th through Thursday, November 9th Fall Clean-up Program. Leaves and grass raking's must be placed in compostable paper bags and left at the curbside by 7:00 am on Monday, November 6th. After November 9th, Claremont citizens may bring leaves, bagged in compostable biodegradable bags, to the Transfer Station on Tuesday's and Saturdays at no cost.

Tuesday, November 7th next Election.

CITY MANAGER'S REPORT

Manager Manale gave updates on the paving projects.

Manager Manale gave an update that Nel Mar Hts sidewalk project is completed.

Free Tire recycling day with an estimated over 10,000 tires received.

Fire and Parks will begin Holiday decorating on Broad Street Park and Pleasant Street.

Councilor Stone commends DPW for their organization of Free Tire Day even through the inclement weather.

Councilor Koloski states bridge construction, Flashing lights when the repairs are going on for the emergency vehicles.

CITIZEN'S FORUM

Mayor Girard reminded all citizens may speak for 5 minutes on non-agenda items, and asked to announce their name and ward.

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Roberta Hood WardI- Thanked the council for the new handicap ramp. Mrs. Hood gave props to the Claremont Opera House for making it possible for her family to see the comedian, Bob Marley.

Don Davis Ward I – Mr. Davis apologizes to the council and to Manager Manale for his behavior at the last Council meeting. Mr. Davis Commends the work the city has done on Chestnut Street. Pot holes on Sugar River Drive. Pleasant Street and Broad Street changes. Traffic jams.

Johnathan Hayden Ward III- Mr. Hayden stated he is running for City Council Chair Ward III. Mr. Hayden and his wife own Winter Street Farm. Mr. Hayden stands for a diverse community of voices, building a thriving downtown community, being fiscally responsible and restoring the housing. jjhayfor@gmail.com.

Jr Peter Nelson Ward III- Thanks the Council and Manager Manale for the work you're doing. Read a letter from ABC (A Better Claremont) group. Asking the City of Claremont to send a letter to DES on behalf of the residents to stop Acuity.

10/4/23

Councilors,

A Better Claremont (ABC) is a group of Claremont citizens who strongly oppose the proposed Construction and Demolition Facility (C&D) that Acuity is planning to build on Industrial Boulevard, Claremont NH. We are asking for the City of Claremont to initiate a letter to the New Hampshire Department of Environmental Services (NH DES) to demand that NH DES reject Acuity's application.

This property was permitted in 1987 to recycle cans and cardboard. Acuity wants to put a C&D Transfer Facility on site. They argue that the permitted recycle facility should be expanded to handle a massive construction and Demolition facility. According to Acuity's estimation, the facility will receive 77 trucks per day, and an estimated 500 tons of toxic debris, including PFAS, mercury, lead, formaldehyde, and many other toxic chemicals. This facility is within 1000 feet of an elementary school and within ¼ mile of hundreds of homes.

Claremont City Code says that a transfer station is not allowed in Industrial District 1. The designated Recycle center classification is there due to a 1987 special exception.

In the latest determination, the Zoning Board of Adjustment (ZBA) said that the facility as proposed is not allowed, due to City ordinance. It does not meet the code requirements; now we want DES to recognize the validity of Claremont's codes.

One of the problems with this permit modification application Acuity sent to NH DES is that the City said NO and NH DES should not consider this modification due to the authority regarding local control.

ABC wants an NH DES informational meeting in Claremont before a draft permit is considered. The citizens need to be heard. This is not a modification of the existing permit; this is a major shift in size and purpose.

The city has said NO and NH DES should reject Acuity's application.

Sincerely,

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Wayne Hemmingway Ward – appreciation the Council letting him speak, he reminding the council and public he is running for Councilor at Large. Mr. Hemmingway stated explained his Military background. Unit administrator. Took care of all supplies and food. Thank you for your time.

Representative Hope Damon, District 8 for Croydon and Claremont - Mrs. Damon gave updates on voter registration. Community power coalition. Legislative education committee, requiring mental health as apart of schools. Background checks to also be required in all aspects of schooling.

Assistant Mayor Matteau- Deb Matteau Ward I- Read Letter to ask for support as another term for Assistant Mayor.

Norm Blouin Ward III – Shared concern for management and maintenance.

Councilor O’Hearne asks that those in the audience silence their cell phones.

OLD BUSINESS

Ordinance 612 Special Assessment

Manager Manale explains Ordinance.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY THREE

ORDINANCE #612

Claremont City Code Amendments

The City of Claremont Ordains:

Pursuant to Chapter 1, Section 1-9, the Claremont City Code is hereby amended as follows:

Section 1. Chapter 15, Sections 15-1 through 15-9- Special Assessments.

Revise and update Sections 15-1 through 15-9, as follows:

Sec. 15-1. – Action upon receipt of petition or recommendation.

The city council shall give notice and hold public hearings to consider imposing special assessments when it receives:

- A. a petition signed by the owners of at least two-thirds of the property proposed for special assessment; or;
- B. upon receipt of a recommendation from the city manager for a special assessment.

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The city council shall consider and take action as it deems appropriate.

(Ord. No. 165, § 1, 1-12-77)

Sec. 15-2. - Contents of petition and recommendation.

Any petition or recommendation submitted under the provisions of section 15-1A shall contain within the text of the petition or recommendation or by attachments thereto:

(1) The public improvement proposed, including surveys, plans, engineering drawings, specifications, and such other documentation as shall be necessary to clearly set forth the proposal. (2) An estimate of the costs of the proposed improvements, broken down by appropriate categories and line items and substantiated by persons fully qualified to give such estimates. (3) A roll showing the names, addresses, and title references of all the owners of the property proposed for special assessment. (4) The portion of the costs proposed to be defrayed by the special assessment. (5) The formula proposed for determining the portion of the special assessment to be taxed to specific properties. (6) The number of installments proposed for the special assessment.

(Ord. No. 165, § 2, 1-12-77)

Sec. 15-3. - Filing of the petition.

The original copy of the petition for a special assessment shall be filed with the city clerk along with a certificate by one (1) of the petitioners that copies of the petition and all supporting documents have been delivered to the city manager and city solicitor.

(Ord. No. 165, § 3, 1-12-77)

Sec. 15-4. - Action by city solicitor.

Within ten (10) days after receipt of a copy of the petition for special assessments, the city solicitor shall notify the council, through the city manager, and one (1) of the petitioners whether or not, in his opinion, the petition submitted meets the requirements of section 15-2; and, if it does not, what further documentation is needed. In the event further documentation is required by the city solicitor, and it is then filed in accordance with section 15-3, the city solicitor shall then notify the council, through the city manager, and one (1) of the petitioners, that the petition then meets the requirements of section 15-2.

(Ord. No. 165, § 4, 1-12-77)

Sec. 15-5. - Notice of public hearing.

At the next regular meeting of the council, after receipt of notification by the city solicitor, as required by section 15-4, or recommendation from the City Manager, the council shall set a date for a public hearing and cause notice to be given to the public at least fourteen (14) days before the hearing. By certified mail, the city will properly notify all owners of the properties proposed for a special assessment of the public hearing.

(Ord. No. 165, § 5, 1-12-77)

Sec. 15-6. — Public hearing.

At the public hearing, the council shall hear the petitioners, the City Manager or their designee, and all others who offer evidence or comments concerning the proposed

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public improvement, the costs thereof, the property proposed for the special assessment, the portion of the costs to be defrayed by the special assessment, the formula for determining the special assessment for each property and the number of installments. If deemed necessary by the council, the hearing may be adjourned from time to time.

(Ord. No. 165, § 6, 1-12-77)

Sec. 15-7. – Council action.

If, after hearing, the council shall determine that the proposed public improvement should be approved and that the whole or any part of the expense thereof should be defrayed by special assessments upon the property especially benefited, it shall so declare by resolution. The resolution shall state:

(1) The improvements and their specifications. (2) The estimated costs thereof. (3) The portion of the costs to be paid by special assessments and the portion to be a general obligation of the city. (4) The roll of properties on which the special assessments are to be levied. (5) The formula to be used by the city assessor to determine the portion of the special assessments to be levied against specific properties. (6) The number of installments in which the special assessments may be paid.

(Ord. No. 165, § 7, 1-12-77)

Sec. 15-8. – Duties of city assessor.

When the council has, by resolution, authorized special assessments, the city assessor shall:

- (1) Compute the amount of the special assessment for each property.
- (2) Bill the property owner along with the regular annual real estate tax bills.

(Ord. No. 165, § 8, 1-12-77)

Sec. 15-9. - Appeals.

In the event any property owner believes that the special assessment levied against his property is in error, he shall have the same rights for abatement and appeal as he has for other real estate taxes.

(Ord. No. 165, § 9, 1-12-77) (Ord. No. 165, § 9, 1-12-77)

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 15, Sections 15-1 through 15-9- Special Assessments of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

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This Ordinance shall take effect and be enforced or implemented immediately upon passage.

A motion was made by Councilor Contois and seconded by Councilor Stone to adopt Ordinance 612.

Councilor Contois reads explanation of proposed action into the record.

Mayor Girard opens up Citizens Forum.

Roberta Hood Ward III- Concerned about what the Ordinance means. Asks the Council for clarification in “layman’s terms”.

Manager Manale explains in “layman’s terms”.

Jr Peter Nelson Ward III- Mr. Nelson retracted comments from a few weeks ago on this subject. Suggested making an exception for the elderly home owners.

Mayor Girard closes public hearing.

Councilor Stone explains the process of the ordinance.

Assistant Mayor Matteau Special assessments will be determined with each item that comes before the council and they have the ability to vote.

Councilor Stone explains that this ordinance will give the public a chance to come and speak on items as well.

Councilor Batchelder In general he thinks this is good but disagrees with the 50%.

Councilor Koloski Explained why he supports this Ordinance.

Roll call:

O’Hearne – Yes

Batchelder – No

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - No

Mooshian – Absent

Girard – Yes

Motion carried 6-2

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Ordinance 615 Claremont Arts, History and Culture Resources Preservation Commission

Manager Manale explains the ordinance and how the Ordinance incorporates the changes that were suggested by members of the council.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY THREE

ORDINANCE #615

The City of Claremont Ordains:

Section 1. Claremont Arts, History and Culture Resources Preservation Commission

Amend City Code Chapter 2, Article II, to add new Division 11, Sects. 2-141 through 2-145, as follows:

Sec. 2-141 Definition.

For the purpose of this ordinance, “Arts, History and Culture” encompasses a wide range of activities, including painting, sculpture, other fine and folk arts, crafts, popular culture, music, theater, dance, film, other performance arts, architecture, archeological resources, cemeteries, literature, history, community/cultural heritage, agriculture, and other elements consistent with the intent of this section. The City of Claremont endorses the proper recognition, use, and protection of resources, tangible or intangible, primarily man-made, that are valued for their historical, cultural, aesthetic, or community significance within their natural, built, or cultural contexts.

Sec. 2-142 Purpose of the Commission.

This Commission is established by the Claremont City Council pursuant to NH RSA’s 47:17 XV and 674:2, III (h). The geographic focus of the Arts, History, and Culture Commission’s activities shall be Claremont, but when appropriate, the Arts, History, and Culture Commission may work to promote historic assets, arts, and culture in the Greater Claremont area, consistent with the intent of this section. The purpose of the Arts, History and Culture Commission (or “the Commission”) is to implement the Arts, History and Culture Resources Master Plan by:

- (1) Highlighting our heritage to inspire a sense of place and pride in the City of Claremont;
- (2) Identifying, strengthening, promoting, and marketing Claremont’s historic and cultural assets, infrastructure, and artistic treasures;
- (3) Facilitating community involvement in the arts;
- (4) Recognizing the economic power of the arts, history, and culture in Claremont;
- (5) Invigorating Claremont with an emphasis on the City’s unique blend of old-fashioned charm and progressive vision; and

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(6) Acting on the City's behalf on matters of arts, history, and culture.

Sec. 2-143 Functions of the Commission.

The Arts, History, and Culture Commission is not a regulatory body. It has no review authority, and there is no requirement for it to review or approve any proposed event, project, or installation. No artist, organization, or business is required to consult with or appear before the Commission. However, artists, organizations, or businesses are encouraged to receive feedback on any proposed event, project, or installation before submission to the city. The roles and responsibilities of the Arts, History, and Culture Commission include the following, subject to establishing priorities and availability of time and resources:

- (1) Master Plan. In consultation with the Historic District Commission, the Commission will implement the Arts, History, and Culture Resources sections of the Master Plan. Implementing this plan is the primary role of the Commission.
- (2) Public displays. Promotion and organization of public art displays, historical displays, forums, fairs, murals, exhibitions, performances, and other events.
- (3) Developing resources. Development of resources to support local artists and cultural organizations.
- (4) Coordination with other organizations. Coordinating, as appropriate, with other governmental, nonprofit, social, and business organizations connected with the arts, cultural resources, our community heritage, land development, economic development, tourism, and historic preservation.
- (5) Promoting cooperation. Promoting dialogue and collaboration between arts and cultural organizations and coordinating activities and projects with these organizations. This includes organizations located in Claremont as well as those situated outside of the city.
- (6) Educating the public about historic, artistic, and cultural resources.
- (7) Marketing, promoting, and developing Claremont as an arts and cultural destination.
- (8) Providing advice and advocacy to agencies of local, state, and federal government regarding the identification, promotion, and preservation of historic, artistic, and cultural resources.
- (9) Encouraging local and regional businesses to support and engage in arts, history, and culture.
- (10) Fostering excellence in design in wide-ranging aspects of civic and community life in Claremont.
- (11) Encouraging the participation of diverse populations in Claremont in arts, history, and culture.
- (12) Periodically recommending to the Planning Board updates to the Historic Resources Master Plan.
- (13) Recommending to the City Council amendments to this Section.
- (14) Applying for and implementing grants and soliciting other funds, as appropriate.
- (15) Developing a database, inventory, and directory of the Greater Claremont area's historical, artistic, and cultural resources.

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- (16) Create a catalog of, promote, and display the city's artistic, historic, and cultural assets.
This includes but is not limited to paintings, books, historic memorabilia, antiques, furniture, collectibles, and any other item the Commission considers a city asset.
- (17) Annual Report. Preparation of an annual State of the City arts, history, and cultural report for the City Council.
- (18) Other activities. Undertaking any other appropriate action or activity necessary to carry out its mission.

Sec. 2-144 Structure of the Commission.

- (1) Composition. The Arts, History, and Culture Commission shall consist of 7 members, all of whom shall be residents of Claremont and shall be regular voting members. Membership of the commission shall consist of the following:

Two members appointed by the council from an arts organization located in Claremont;

Two members appointed by the council from a cultural or historic organization located in Claremont.

Three members appointed with significant interest or participation in the promotion and preservation of Claremont's arts, history, and cultural assets.

- (2) Qualifications. All members shall be residents of the City of Claremont. In reviewing the qualifications of all candidates for the Commission, the City Council shall consider his/her demonstrated interest and experience in, and knowledge of, arts, history, crafts, and culture and his/her ability to administer this Section consistent with the mission of the Commission. To the extent that such persons are available, the Council shall seek members with diverse backgrounds.

- (3) Appointments. The Arts, History, and Culture Commission members shall be appointed pursuant to Chapter 2, Article II, Division 1 of the City Charter for terms of 3 years. Some initial appointments (and subsequent appointments, when necessary) shall be for less than three years in order that the various terms be staggered.

Sec. 2-145 Administration.

- (1) Meetings and activities. The Commission shall meet as needed, but it shall meet at a minimum twice each calendar year. It shall hold an annual meeting in February, or at such other time as determined by the Commission, to review the prior year's activities and plan for the upcoming year.
- (2) Bylaws. The Commission shall adopt bylaws to govern its operation.
- (3) City and State law. The Commission shall be regulated by all applicable City and State laws.
- (4) Staffing and resources. The City of Claremont will provide staffing and other support to the Arts, History, and Cultural Commission, as appropriate, subject to the availability of staff resources.
- (5) Professional advice. The Commission may seek advice from such professional resources as deemed necessary, subject to the availability of funding.

Section 2. Prior Enactments Shall Not Be Superseded

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Any adoptions and/or amendments to Chapter 2 of the City Code by action of the City Council prior to the adoption of this Ordinance are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause, or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to remove Ordinance 615 from the table.

Councilor Koloski states this is a good starting point.

Councilor Stone expresses concerns were addressed and take care of.

Mayor Girard opened public hearing.

Peter Nelson Ward III states wanting to see Claremont thrive, our history attracts people here. Most of the housing stalk is pre-1945. We should preserve our history.

Mayor Girard closes public hearing.

A motion was made by Councilor Batchelder and seconded by Councilor Stone to adopt Ordinance 615.

Councilor Batchelder read the explanation of proposed action into the record.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian - Absent

Girard - Yes

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Motion carried 8-0

NEW BUSINESS

Ordinance 616 Disabled Exemption

Assessing Consultant Mr. Hamilton explains Ordinance. Some increase to the income and asset limits to the ordinance.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #616

PROPERTY TAX EXEMPTION FOR THE DISABLED

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 72:27-a and RSA 72:37-b, the Claremont City Code is hereby amended to revise Article II, Division 3 of Chapter 18 as follows:

Section 1. Property Tax Exemption for the Disabled

Sec. 18-53. Exemption for the disabled.

Revise Subsection (a), (2) and (3) of Section 18-53 to modify the annual benefit amount and net income and asset qualification standards to read as follows:

- (a) In accordance with New Hampshire RSA 72:37-b, the city shall provide for the exemption for disabled persons from property tax, that every inhabitant who is entitled shall be granted a thirty-five thousand dollars (\$35,000.00) property value exemption based upon the following additional eligibility criteria:
 - (2) Applicant must have had, in the calendar year preceding April 1 of the year in which the exemption is claimed, an annual net income from all sources of less than twenty-three thousand seven hundred dollars (\$23,700.00), if single, [or] a combined annual net income of less than thirty-two thousand dollars (\$32,000.00), if married. Such net income is to be determined by deducting from all monies received from any source whatsoever the amount or sum of any life insurance paid on the death of an insured, expenses and costs incurred in the course of conducting a business enterprise, [and/or] proceeds from the sale of assets; and
 - (3) Applicant's net assets, as defined in RSA 72:37-b III(b), excluding the value of the residence and the land upon which it is located up to the greater of two (2)

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acres or the minimum single family residential lot size for that zone as specified in the city's zoning ordinance, must not exceed forty-two thousand three hundred dollars (\$42,300.00).

Section 2. Validity.

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 3. Effective Date.

This Ordinance shall take effect for purposes of accepting applications under the increased limits immediately upon passage and shall be enforced for property tax exemptions for the disabled for the tax year commencing April 1, 2023.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to adopt Ordinance 616.

Councilor Koloski read the explanation of proposed action into the record.

Councilor Batchelder asks for the exact dollar amount. Benefit amount \$35,00.00.

Assistant Mayor Matteau asks Mr. Hamilton If assets do not include the value of the home.

Mayor Girard opens public hearing.

Roberta Hood Ward I - Mrs. Hood inquiries about where the public can access forms for this ordinance.

Manager Manale explains forms and help are available at the assessing office.

Mayor Girard closes public hearing.

Roll call

O'Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian - Absent

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Girard - Yes
Motion carried 8-0

Ordinance 617 Elderly Exemptions

Assessing Consultant Mr. Hamilton explains ordinance – recipients 80 % impact of inflation. 65 up to 75 that meet the qualification standards.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #617

PROPERTY TAX EXEMPTIONS FOR ELDERLY

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 72:27-a, RSA 72:39-a and RSA 72:39-b, the Claremont City Code is hereby amended to revise Article II, Division 4 of Chapter 18 as follows:

Section 1. Exemption amount and qualifications

Sec. 18-58 (1), (2), (3) and (4). Exemption amount and qualifications.

Revise Subsections (1), (2), (3) and (4) of Section 18-58 to increase the benefit amounts and qualifying net income and asset limits so that the provision shall read as follows:

In accordance with RSA 72:39-a and RSA 72:39-b, the city shall provide an exemption from real estate taxes, beginning in the tax year commencing April 1, 2023, for those individuals qualified for such exemption under RSA 72:39-a and RSA 72:39-b, as they may be amended from time to time, in the following manner:

(1) For a person sixty-five (65) years of age up to seventy-five (75) years of age \$54,000.00

(2) For a person seventy-five (75) years of age up to eighty (80) years of age \$90,000.00

(3) For a person eighty (80) years of age or older \$138,000.00

(4) To qualify, an unmarried taxpayer must have a net income of not more than twenty-six thousand five hundred dollars (\$26,500.00), or if married, must have a combined net income of not more than thirty-five thousand dollars (\$35,000.00). Net assets for either an unmarried taxpayer or, if married, combined assets must be not more than seventy-two thousand five hundred dollars (\$72,500.00), exclusive of the value of the taxpayer's

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residence and the land upon which it is located up to the greater of two (2) acres or the minimum single-family residential lot specified in the Claremont Zoning Ordinance for the zone in which the property lies. The combined net asset amount shall apply to a surviving spouse until the sale or transfer of the property by the surviving spouse or until the remarriage of the surviving spouse.(5)In addition, to qualify for an exemption under this section, the taxpayer must have been a resident of New Hampshire for at least three (3) consecutive years, own the real estate individually or jointly, or, if the real estate is owned by such person's spouse, they must have been married to each other for a least five (5) consecutive years.

Section 2. Validity.

If any article, section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this ordinance.

Section 3. Effective Date.

This Ordinance shall take effect for purposes of accepting applications under the increased limits immediately upon passage and shall be enforced for property tax exemptions for the elderly for the tax year commencing April 1, 2023.

Councilor Limoges asks does not include the land and home that it sits on.

Mr. Hamilton responds correct, any assets outside of the home.

Councilor Stone asks if the assets also include Motor vehicles.

Mr. Hamilton we would deduct the value of the loan.

Mr. Hamilton encourages people to come in and fill out the paperwork for people truly in need.

Councilor Koloski questions section four section one.

Mr. Hamilton gives an example.

Opens up to public hear no one spoke mayor closes public hearing and brings back to council

A motion was made by Councilor Limoges and seconded by Assistant Mayor Matteau to adopt Ordinance 617.

Councilor Limoges read the explanation of proposed action into the record.

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Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian - Absent

Girard - Yes

Motion carried 8-0

Ordinance 618 Vets Credit

Assessing Consultant Mr. Hamilton explains ordinance. Recommend that we readopt that was originally included in the ordinance.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-THREE

ORDINANCE #618

PROPERTY TAX CREDIT FOR VETERANS

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 72:28, the Claremont City Code is hereby readopted, Article II, Division 2 of Chapter 18 as follows:

DIVISION 2. - PROPERTY TAX CREDIT FOR VETERANS

Sec. 18-43. - Credit amount and qualifications.

- (a) In accordance with RSA 72:28, the city shall provide for a credit for veterans from property tax, that every inhabitant who is a veteran or the surviving spouse of a veteran shall be exempt each year from tax on his/her residential real estate in the amount of five hundred dollars (\$500.00).

Section 2. Validity.

If any article, section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this ordinance.

Section 3. Effective Date.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

This Ordinance shall take effect for purposes of accepting applications under the increased limits immediately upon passage and shall be enforced for property tax exemptions for the elderly for the tax year commencing April 1, 2023.

Councilor Koloski states he feels \$50.00 credit is insulting.

Councilor Stone the policy committee felt that the amount should be higher as well.

Mayor Girard opens public hearing

Peter Nelson Ward III – stated he agrees this amount is insulting as these men and woman put their lives at stake for us. We should give them as much as we can.

Mayor Girard Closes public hearing.

Councilor Batchelder says surviving spouses can also apply for this tax credit.

Councilor Koloski feels this amount should be adjusted every year.

Assistant Mayor Matteau asks Mr. Hamilton when the deadline is if the Council decided to push this out.

Mayor Girard could affect our tax rate settings we should readdress after we re-adopt the Ordinance.

A motion was made by Councilor Batchelder and seconded by Councilor Stone to adopt Ordinance 618.

Councilor Batchelder read the explanation of proposed action into the record.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian - Absent

Girard - Yes

Motion carried 8-0

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Community Center Update

Director Lawrence explains handout, also informing the Council the center is looking into a new software program.

Claremont Savings Bank Community Center City Council Update October 25, 2023

Total Membership Revenue

<u>July 1- Sept 30, 2018</u>	<u>July 1- Sept 30, 2019</u>	<u>July 1- Sept 30, 2020</u>	<u>July 1- Sept 30, 2021</u>	<u>July 1- Sept 30, 2022</u>	<u>July 1- Sept 30, 2023</u>
\$56,912.49	\$67,171.72	\$25,694.96	\$70,682.77	\$60,360.28	\$95,561.20

Guest Pass Revenue

<u>July 1- Sept 30, 2018</u>	<u>July 1- Sept 30, 2019</u>	<u>July 1- Sept 30, 2020</u>	<u>July 1- Sept 30, 2021</u>	<u>July 1- Sept 30, 2022</u>	<u>July 1- Sept 30, 2023</u>
\$12,274.00	\$11,676.00	\$5,482.00	\$8,833.00	\$8,578.00	\$15,350.00

Rental & Locker Revenue

<u>July 1- Sept 30, 2018</u>	<u>July 1- Sept 30, 2019</u>	<u>July 1- Sept 30, 2020</u>	<u>July 1- Sept 30, 2021</u>	<u>July 1- Sept 30, 2022</u>	<u>July 1- Sept 30, 2023</u>
\$5,170.03	\$2,806.45	\$451.00	\$2,082.59	\$3,012.28	\$7,135.00

Membership, Guest Pass, and Rental/Locker Revenue Totals

<u>July 1- Sept 30, 2018</u>	<u>July 1- Sept 30, 2019</u>	<u>July 1- Sept 30, 2020</u>	<u>July 1- Sept 30, 2021</u>	<u>July 1- Sept 30, 2022</u>	<u>July 1- Sept 30, 2023</u>
\$74,356.52	\$81,654.17	\$31,627.96	\$81,598.36	\$71,950.56	\$118,046.20

+ \$46,095.44 or 60.95% increase in revenue from 22-23 through first three months in 23-24

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Active Membership Totals

Important software note: It is currently not feasible to generate reports of past membership data with ActiveNet software. At this time, all reports must be *printed* to maintain a running record of past membership totals at certain points in time.

Active Membership Type	<u>Sept 30, 2019</u>	<u>Sept 30, 2020</u>	<u>Sept 30, 2021</u>	<u>Sept 30, 2022</u>	<u>Sept 30, 2023</u>
Adult Annual	266	231	196	223	211
Adult 3-Month	14	9	14	12	0
Adult (Paid in Full)	N/A	N/A	N/A	N/A	27
Adult (MTM Agreement)	N/A	N/A	N/A	N/A	37
Adult (MTM No Agreement)	N/A	N/A	N/A	N/A	11
Youth Annual	31	26	19	45	35
Youth 3-Month	12	8	10	16	0
Youth (Paid in Full)	N/A	N/A	N/A	N/A	17
Youth (MTM Agreement)	N/A	N/A	N/A	N/A	10
Youth (MTM No Agreement)	N/A	N/A	N/A	N/A	2
College (Paid in Full)	N/A	N/A	N/A	N/A	4
College (MTM Agreement)	N/A	N/A	N/A	N/A	2
College (MTM No Agreement)	N/A	N/A	N/A	N/A	5
Senior Annual	493	415	300	355	384
Senior 3-Month	65	38	46	46	4
Senior (Paid in Full)	N/A	N/A	N/A	N/A	75
Senior (MTM Agreement)	N/A	N/A	N/A	N/A	22

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Senior (MTM No Agreement)	N/A	N/A	N/A	N/A	18
Family Annual	578	473	363	413	357
Family (Paid in Full)	N/A	N/A	N/A	N/A	32
Family (MTM Agreement)	N/A	N/A	N/A	N/A	46
Family (MTM No Agreement)	N/A	N/A	N/A	N/A	3
Total	1,459	1,200	948	1,110	1,302

Councilor Stone inquired if the Center has made any progress on collecting past debts.

Director Lawrence explains the center are hoping to possibly have a full-time position to dedicate a lot of their time to that very area.

Councilor Contois asks how much money is out there for debt.

Director Lawrence states the amount was \$260,00.00 unpaid in the history of the Community Center.

Councilor Koloski asks if there is a way the Center can firm this debt out to be taken care of.

Assistant Mayor Matteau asks for clarity on the debt.

Director Lawrence ensures the Council under his direction anyone with a past due balance has not been able to utilize the center.

Assistant Mayor Matteau asks if the cards used at the center flag the patrons that have past due accounts.

Director Lawrence explains the system does flag outstanding memberships.

Councilor Stone asks for an update on the diving board installation.

Mayor Girard feels the Council was under the impression the base was on order.

Councilor Koloski would like to go see the “asset”. States he has had constituents call about the cleanliness.

Manager Manale states a tour is being scheduled now that most of the equipment has been delivered.

Councilor Stone states his frustration with the diving board.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes

MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

A motion was made by councilor Stone seconded by councilor Batchelder that the Council direct Yoshi Manale to facilitate the ordering of the base as soon as possible.

Councilor Contois inquires what the interest is for the diving board. Councilor Contois says the facility is a very fine clean facility.

Mayor Girard states he has had many phone calls for a more family friendly pool.

Councilor Contois asks what a lot of calls is.

Mayor Girard explains this has been a regular call received.

Councilor Stone states \$3,000.00 is a small amount and is way overdue.

Councilor Koloski asks if the Community Center was gifted a diving.

Councilor Batchelder amends the motion not to exceed \$3,000.00.

Councilor O’Hearne would like an answer at the next meeting on the cost of the bas

Roll call

O’Hearne – No

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - No

Limoges - Yes

Contois - No

Mooshian – Absent

Girard - Yes

Motion carried 5-3

Councilor Contois states the numbers presented look like they are good and moving in the right direction.

Director Lawrence explains 61% is good.

Councilor Batchelder ask what retention rate is.

Director Lawrence states it is hard to get an accurate number with the current software.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Resolution 2024-17

Director Mulholland explained resolution.

A motion was made by Councilor Batchelder and seconded by Councilor O’Hearne to accept resolution 2024-17.

Councilor Batchelder read Resolution 2024-17 into the record.

Mayor Girard inquires about the balance of this fund.

Director Mulholland there will be funds added from auction revenues.

Mayor Opens for public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian – Absent

Girard - Yes

Motion carried 8-0

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Present and Review Tax Deeding List

Mrs. Melcher states there was one change of 132 Elm Street moved to payment agreement from the Deeding list.

TAX DEEDING LIST FOR 2018 TAXES						
Location	Map/Lot	PID	Owner	Land	Building	Total Taxes Due as of 10/25/23
CAT HOLE RD	32-1	34660	ARGOE MARTHA LEWIN	800	0	\$ 704.09
LAFAYETTE ST	107-102-1	9641	AUGER PAUL	17,000	0	\$ 5,779.15
27 CHASE ST	132-154	17220	BELANGER JAMES M	15,000	75,300	\$ 27,217.91
MAIN ST	120-2-1	1490	BOURDON JD REALTY INC	5,300	0	\$ 2,663.51
13 MILL RD	107-25-2	63027	BOURDON JD REALTY INC	136,400	117,800	\$ 80,288.44
8 UPHAM PL	159-56-17	50017	BROOKS DAVID B	0	7,900	\$ 5,204.09
20 DENNISON AVE	129-141-1	62061	BURNS DONNA	0	7,400	\$ 13,313.00
22 UPHAM PL	159-56-24	50023	CARBINO SR THEODORE L ESTATE	0	11,400	\$ 5,988.23
130 BROAD ST	120-149	4530	DAL ADVISORS LLC	79,300	41,700	\$ 38,503.30
12 LEA ST	143-7	23730	FINCH EDITH ESTATE	13,200	79,200	\$ 46,365.82
20 GOYETTE AVE	131-255	22960	FINCH ROBERT E ESTATE	14,200	72,500	\$ 33,862.07
SLAB CITY RD	85-4	36745	FITZGERALD DONALD	8,500	0	\$ 4,440.85
132 ELM ST	95-74	11720	GODFREY LINDA	17,500	42,900	\$ 19,639.84
74 MAPLE AVE	142-93	21170	HOULE EDWARD E	12,200	0	\$ 6,911.41
225 TWISTBACK RD	82-79	7080	LUCIA TIMOTHY P	13,900	26,000	\$ 22,906.41
53 CONGRESS ST	82-37	7350	MCEACHERN TRACY	12,900	59,700	\$ 27,745.79
150 WHITEWATER BROOK RD	17-8	32781	MORIN RAYMOND	18,800	124,600	\$ 40,639.31
9 FIRST ST	121-64	14770	PELLETIER JOESPH A	14,400	70,600	\$ 32,062.08
19 WALNUT ST	119-279	26340	PERRY PHILLIP F	15,600	70,600	\$ 31,885.22
18 UPHAM PL	159-56-22	50021	PICARD SAMANTHA ANN	0	20,600	\$ 9,116.93
58 PEARL ST	119-268	26230	PRASAVATH CHANTHASONE	8,700	81,600	\$ 33,647.65
159 PLEASANT ST	131-145	22330	RIVET LOUIS G	15,100	37,900	\$ 18,704.19
10 UPHAM PL	159-56-18	500171	SMITH AMY R	0	17,100	\$ 8,029.16
1 CLEARY CT	120-160	4370	ST AMAND KEVIN N	13,300	42,800	\$ 35,731.85
19 CENTENNIAL ST	108-26	10740	TWIN STATE PROPERTY MAINTENANCE	10,600	28,600	\$ 39,440.98
342 EAST GREEN MOUNTAIN RD	100-8	35710	TWIN STATE PROPERTY MAINTENANCE	19,200	22,200	\$ 25,280.74
139 MAIN ST	107-15	940	TWIN STATE PROPERTY MAINTENANCE	13,000	0	\$ 19,880.52
162 MAIN ST	107-46	430	TWIN STATE PROPERTY MAINTENANCE	17,300	1,900	\$ 13,689.45
166 MAIN ST	107-47	440	TWIN STATE PROPERTY MAINTENANCE	13,900	1,900	\$ 10,684.23
170 MAIN ST	107-48	450	TWIN STATE PROPERTY MAINTENANCE	29,200	85,600	\$ 82,724.58

27 ELM ST	107-246	720	TWIN STATE PROPERTY MAINTENANCE LLC	8,700	31,400	\$ 36,190.88
11 FIRST ST	121-63	14750	TWIN STATE PROPERTY MAINTENANCE LLC	15,300	59,000	\$ 44,288.61
LAFAYETTE ST	107-92	9580	TWIN STATE PROPERTY MAINTENANCE LLC	35,400	0	\$ 22,151.55
32 LAFAYETTE ST	107-72	9290	TWIN STATE PROPERTY MAINTENANCE LLC	41,800	281,400	\$ 240,736.09
PAYMENT AGREEMENTS						
302 PLAINS RD	81-16	38890	FISHER KELLY	25,400	103,000	\$ 49,312.44
17 STEWART AVE	159-19	44430	NAGLE RICHARD A	15,100	18,200	\$ 4,043.10
17 PAWTUCKET AVE	118-68	27660	OUELLETTE JOSHUA	11,100	54,200	\$ 20,203.19
17 MADISON PL	57-21-17	32037	POLAND REBECCA A	0	13,100	\$ 4,309.57
12 COTTAGE ST	131-166	18940	RIZZO ANGELA	10,600	2,000	\$ 8,859.84
38 WEBSTER AVE	93-30	37930	RIZZO ANGELA	20,700	97,500	\$ 46,568.98
BANKRUPTCY						
33 UPHAM PL	159-56-12	50012	THIBAUT DATHXE B	0	22,800	\$ 29,894.50
14 UPHAM PL	159-56-20	50019	WRIGHT CAROLYN V	0	21,600	\$ 34,420.38
SELLING						
131 MAIN ST	107-16	950	JOHNSON SR ALFRED R TRUSTEE	28,300	39,800	\$ 68,100.00
					TOTAL	\$ 1,352,129.93

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Mrs. Melcher states 132 Elm Street was moved from the deed list to the payment list.

Councilor Stone inquiries about multiple dwellings/properties by same owner.

Mrs. Melcher states the city has received payment from home owners' assistance for a payment agreement, the two properties should be paid by the end of November.

Councilor Koloski inquires if anyone has verified there are no lingering environmental issues in the properties.

Mrs. Melcher states the list was sent out to other departments but will be checked before the city deeds them.

Councilor Koloski states he is hesitant on a few properties.

Councilor Stone asks if the mobile homes is the units themselves.

Mrs. Melcher states the city will be applying for a grant to remove the mobile homes that are beyond repair.

Mayor Girard asks if the outstanding rents owed to the mobile home park will become the city's responsibility.

Manager Manale responds no.

Councilor Stone inquires about 32 Lafayette Street and the condition of the building.

Councilor Koloski states the last time the building was in operation there were several things stored in crawl spaces.

Councilor Stone asks if there have been any walk throughs or visual inspections of these properties.

Director Merrill responds yes, they have in there, there was a small fire. It will soon be re-boarded.

Mayor Girard states with all the questions on multiple properties maybe the Council should wait until there is further information.

Councilor Koloski states the city can back out of any of the properties.

Mrs. Melcher explains there is some time to come back to the Council.

Councilor Limoges asks Mrs. Melcher if deeds are all done deals or if the property owner has a chance.

Mrs. Melcher explains they have had their chance to pay, if a homeowner came in today to pay they would be taken off of that deeding list.

Director Mulholland explains once Mrs. Melcher deeds them the property owner has a time frame they can come back and pay to repurchase the property.

Councilor Stone states he is comfortable moving forward except for the Lafayette Street property.

Councilor Koloski states he is comfortable moving forward with the list.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Councilor Contois asks if the city has assessed these properties at all.

Mrs. Melcher explains some of these properties are still occupied.

Councilor O’Hearne states he is ok moving forward with hopes of having reports on these concerned properties.

Assistant Mayor Matteau how long the opportunity to repurchase.

Mrs. Melcher 30 day after repurchase letter.

Councilor Stone states these properties have multiple leans on them.

A Motion was made by Assistant Mayor Matteau seconded by Councilor O’Hearne to accept the deeding list.

Assistant Mayor Matteau reads the Tax Deed List into the record

Councilor Koloski will the Council do another motion to tax deed.

Mrs. Melcher explains the motion is for the ones you want to refuse.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian – Absent

Girard - Yes

Motion carried 8-0

Vehicle Lease Purchase



Memo

Council Meeting

October 25, 2023

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MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

To: Mayor, Assistant Mayor, and Council

From: Diane Mulholland, Finance Director

Date: October 17, 2023

Re: Planning Vehicle Purchase

The Council has before them information regarding lease purchasing a 2023 Ford Bronco for the Planning and Development Office. The purchase price is \$30,419.52. We received the following 2 bids for 5-year leases:

Ford Credit Municipal Finance at 9.09% with an annual payment of \$7,314.46.

Acme Auto Leasing, LLC at 12% with an annual payment of \$7,300.45.

These interest rates seemed high and were not the best rates for the City of Claremont, I reached out to Mascoma Savings Bank and Municipal Leasing Consultants. Municipal Leasing Consultants did not respond to my email. Mascoma Savings Bank offered the following Municipal Lease Purchase terms:

Mascoma Savings Bank at 5.4% with an annual payment of \$6,771.70 for 5-years.

I would recommend purchasing the 2023 Ford Bronco from Ford of Claremont, financing with Mascoma Savings Bank.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Motion to Accept Multi-Year Lease for Vehicles

The Claremont City Council hereby authorizes the City Manager to enter into a multi-year lease agreement **1** – Vehicles for Planning and Development in the amount not to exceed \$31,000 the expenditure for the first year of the lease being \$6,771.70; said costs have been raised and appropriated in the 2024 budget. The proposed lease agreement contains a termination clause in the event of non-appropriation of sufficient funds for any subsequent year of lease.

Director Merrill 2023 Ford Bronco explains why the city is looking into a different interest rate. The rates seemed high so Director Mulholland called two other banks, Mascoma is a municipal lease of 5.4 % and does have the escape clause.

Councilor Contois asks for clarification.

Director Mulholland explains the city is doing a municipal lease purchase which requires us to have an escape clause. We will own it at the end.

Councilor Contois states he is surprised that the vehicle is a bronco.

Councilor O’Hearne asks Director Merrill what vehicle is being replaced.

Director Merrill states the department will be replacing the old fire Tahoe that will no longer pass inspection.

Councilor Stone asks if the recommendation is a bronco.

Director Mulholland responds yes.

Councilor Stone asks if this is a popular government type vehicle that is used for municipalities.

Director Merrill explains the vehicle is a Bronco Sport so a smaller Bronco but is used for sites that are hard to get to during bad weather and also taking new potential investors around the city.

Councilor Stone asks if the city received a bid for a Durango or Ford Explorer.

Director Mulholland explains the city did ask for those but we did not receive any bids for those vehicles.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Councilor Batchelder asks Director Merrill if the car was in stock.

Director Merrill responded that yes, the car is in stock.

Councilor O’Hearne asks what the purpose of the vehicle function is.

Director Merrill explains used for site visits by inspectors and planners, also used by Director Merrill to show the city.

Mayor Girard asks if we are able to buy the vehicle through Ford.

Director Mullholland responds yes, it would be exactly the same

Councilor Limoges states it’s a good vehicle.

Councilor Contois asks Manager Manale if the city has looked into electric vehicles.

Manager Manale moving forward we will be looking at the tax payer incentive programs, we will be doing that evaluation.

Director Mulholland states the city has talked to the Grant consultants about electric vehicles for the future.

Manager Manale notes the performance and powerful of the electric truck is great.

Councilor Stone states he is curious to see how the ford all electric truck operates throughout the first calendar before we get off the rails with purchasing more electric vehicles.

Councilor Batchelder before moving the entire fleet we need more infrastructure for chargers.

A motion was made by Councilor O’Hearne to accept seconded by Councilor Limoges to accept the multi-year lease for vehicles.

Councilor O’Hearne reads the lease agreement into the record.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian – Absent

Girard - Yes

Motion carried 8-0

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Resolution 2024-18

Director Merrill explains the 440,000.00 so we can start this project. The funds would be coming from 3 different funds. See memo.

RESOLUTION 2024-18

Supplemental Appropriation for Infrastructure Improvements –North & Main

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire (the "City") received Federal Highway Improvement Grant funds in 2011 for the reconstruction of the North and Main Street intersection anticipated to cost \$4,810,000 {the "Grant"}; and

WHEREAS acceptance of this Grant required that the City provide local matching funds in the amount of \$785,000 for the North and Main reconstruction project (the "Project") which was done as part of the 2011 bond as well as \$100,000 appropriated in the 2011 Budget;

WHEREAS increased costs required the City to provide additional local matching funds in the amount of \$88,416.75 from Resolution 2021-14 and \$26,584.25 from Resolution 2023-24; and

WHEREAS the project has been bid with expenditures exceeding the engineer's project estimates;

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of \$440,000 as the City's match for the Project, said sum shall be in addition to the funds already appropriated, spent and/or encumbered previously, with offsetting revenue to come from the Municipal Transportation Capital Reserve Fund in the amount of \$225,000, the Reconstruction or Acquisition of City Owned Facilities Fund in the amount of \$65,000, and Fund Balance in the amount of \$150,000 (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED to authorize the City Manager or the Treasurer, or their designees, to withdraw said funds;

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution.
(2B Vote Required)

Council Meeting

October 25, 2023

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Dated this 25th day of October, 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

Councilor Batchelder asks how many companies responded to the bid.

Director Merrill explains speaking with DOT officials they said to be grateful you got one. Seeing projects almost twice the estimate.

Councilor Stone what was the timeframe of the bid being open from beginning to end.

Director Merrill about a month, there are a lot of big projects underway.

Mayor Girard the bid was out for about 1 month it sounds like you put a timeline you wanted to start immediately. 9 to 10 million bids if they didn't have to come in immediately. I think we should be getting another run at the bids.

Director Merrill states the bid was listed as staging would start in the fall.

Councilor Stone asks what is the money at stake that we would be losing at the federal funding if we voted this down tonight.

Councilor Koloski states the city also runs the risk of no one bidding or that same bidder adding on to the project.

Councilor Stone inquires if the project started in 2011.

Director Merrill states 2004.

Mayor Girard states he was told it was specified to start in September/October 2023.

Councilor Stone stated concern that the bid wasn't opened until September 27th.

Director Merrill Explains that was not what was on the website.

Councilor Stone feels we are selling the city short when doing bids in this manner.

Councilor O'Hearne with talking about the bid and wants to see what it says

A motion was made by councilor O'Hearne and seconded by Councilor Batchelder to table Resolution 2024-18 until the next meeting.

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - No

Mooshian – Absent

Girard - Yes

Motion carried 7-1

COMMITTEE REPORTS

Policy Committee - Councilor Stone states the secretary sent over a few documents to the City Manager.

Planning Board – Assistant Mayor Matteau the board looked at Cottage Courts that will be coming before the Council.

Conservation Commission – Councilor Contois states continuation of monitoring Cathole. Engineering study for the golf course.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski states the state treasury has unclaimed funds for the City of Claremont.

Councilor Stone inquires about Ballots.

Director Mullholand explains the Ballots were already sent out.

Assistant Mayor Matteau explains 79-e.

Councilor Contois concerned about legal fees.

CONSULTATION WITH LEGAL COUNSEL

Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

ADJOURNMENT

At 8:56 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to adjourn.

Voice vote:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian – Absent

Girard - Yes

Motion carried 8-0

Respectfully Submitted,

Jamie L. Foster De Rosa
Acting Clerk to the Council